

Court No. - 36

Case :- CONTEMPT APPLICATION (CIVIL) No. - 1026 of 2020

Applicant :- Sukhpal Singh

Opposite Party :- Deepanshu, Executive Engineer,
Pachimanchal Vidhyut Vitran Nigam Limited

Counsel for Applicant :- Ratnesh Kumar Srivastava

Hon'ble Mahesh Chandra Tripathi,J.

Heard learned counsel for the applicant.

The petitioner is before this Court for a direction to initiate contempt proceeding against the respondents for disobedience of the order dated 04.04.2019 passed in Writ-C No.10563 of 2019 (*Sukhpal Singh vs. State of U.P. & Ors.*). For ready reference the order dated 04.04.2019 is quoted as under:-

"It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the Respondent No. 3, Executive Engineer/appropriate authority for redressal of his grievance within 15 days from today, his application may be considered and decided by the said authority in accordance with law expeditiously preferably within 30 days thereafter from the date of receipt of a certified copy of this order, copy of the writ petition and its annexures by a speaking order after giving opportunity of hearing to the petitioner.

Electricity Department is further directed to restore the electricity connection forthwith. For a period of 45 days from today no coercive measures shall be taken against the petitioner, provided he files a petition under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within the stipulated period as provided herein above."

The Court has proceeded to peruse the record in question and finds no reason or occasion calling upon any proceeding under Section 12 of the Contempt of Courts Act, 1971.

Once the Court has declined to interfere in the order impugned, learned counsel for the applicant has prayed that the present application be dismissed as not pressed with the liberty to invoke the remedy as is available under law.

Prayer made is allowed.

The Contempt Application is ***disposed of*** with the said liberty.

Order Date :- 13.2.2020

A. Pandey